

To whom it may concern:

Re: Comments on “Draft Guidances Relating to the Regulation of Human Cells, Tissues, or Cellular or Tissue-Based Products”

As a concerned citizen, I respectfully submit comments and wish to thank you for the opportunity to comment on Docket No. FDA-2015-D-3719: Draft Guidances Relating to the Regulation of Human Cells, Tissues, and Cellular and Tissue-Based Products. For the record, the overview of the United States Food and Drug Administration (FDA) regulatory process in this category of product is well documented.ⁱ Without a doubt the field of regenerative medicine is an exciting new frontier with the potential of developing future therapies borne out of scientific breakthroughs that result in improve outcomes and may even provide clinical solutions for incredibly complex patients. I urge the FDA to thoughtfully, but quickly finalize the draft guidances that would serve to clarify the existing criteria used to determine when products qualify for regulation solely as Section 361 Human Cells, Tissues, and Cellular and Tissue-Based Products (HCT/Ps). This finalization would bring sorely needed regulatory oversight.

FDA oversight would in turn serve to alleviate any patient safety concerns as industry attempts to address a number of diseases and conditions. Patients should have access to therapeutic treatments that are proven through the highest level of medical evidence and as a result have met the FDA’s rigorous pre-approval process routinely applied to other areas under the purview of the FDA.

Section 361 of the Public Health Service Act permits donated human tissue to go directly to market without the benefit of the FDA’s rigorous approval process that is in place to insure safety and efficacy. Section 361 was never intended to facilitate commercial enterprises skirting

the FDA regulatory review process. These products, as a result of this loophole, go to market largely tested by merely industry sponsored lower level observational trials rather than sufficiently powered randomized controlled trials that are traditionally required in order to receive FDA clearance or approval for a specific indication of use. While the patient testimonials and observational studies regarding products in this category are encouraging; only a well-designed, sufficiently powered randomized controlled trial can answer the question of safety and efficacy for a specific indication of use. Many promising innovative therapies that were introduced with patient case reports, case series, and matched controlled trials could not stand up when held to the gold standard of a randomized controlled trial.

Section 361 HCT/Ps have no pre-market review requirements and are subject to controls intended only to reduce the chances of spreading infectious diseases. Commercial enterprises are attempting to circumvent the intent of Section 361 HCT/Ps by self-designating their products as qualifying despite the fact that they do not meet the criteria set forth in section 1271.10. These companies process their products in ways that are far from minimal and promote indications for use way beyond homologous use.

The draft guidance is a meaningful step towards reining in an industry that has largely been operating free from oversight that insures the patient safety and efficacy that only FDA regulation can provide.

This commenter applauds the FDA and encourages the move to finalize regulatory guidance to ensure the safety and efficacy of Section 361 HCT/Ps.

ⁱ Lee MH, Whittlesey KJ, Dang JM, Colehour M, Arcidiacono J, Lazarus E, Kaplan DS, Fink D, Durfor CN, Batra A, Hillbert SL, Grayeski DL, McFarland R, Witten C. Overview of the FDA Regulatory Process. Handbook of Stem Cells, Two-Volume Set. Chapter 83, DOI: <http://dx.doi.org/10.1016/B978-0-12-385942-6.00083-4>.